PCIG Consulting Limited

PCN DATA SHARING AGREEMENT TEMPLATE V1

P B COULDREY

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Introduction and purpose

This sharing agreement for the Dorset Primary Care Network is to provide guidance in regard to data sharing only, and it to be read in conjunction with the NHS England Network Contract Directed Enhanced Service Mandatory Network Agreement (First published: April 2019 Updated version published: May 2019).

The objective of primary care networks is for group practices together to create more collaborative workforces which ease the pressure of GP's, leaving them better able to focus on patient care. The aim is that by July 2019, all areas within England will be covered by a PCN.
Primary care networks form a key building block of the NHS long-term plan. Bringing general practices together to work at scale has been a policy priority for some years for a range of reasons, including improving the ability of practices to recruit and retain staff; to manage financial and estates pressures; to provide a wider range of services to patients and to more easily integrate with the wider health and care system.

All GP practices are expected to come together in geographical networks covering populations of approximately 30–50,000 patients by June 2019 if they are to take advantage of additional funding attached to the GP contract. This size is consistent with the size of the primary care homes, which exist in many places in the country, but much smaller than most GP Federations.

To establish this Agreement for the appropriate and lawful sharing of patient information, it is necessary for all co-signees of this Agreement to understand the underlying purposes, the approaches and processes and the mechanisms for its execution. It is critical that sufficient checks are in place to ensure patient data remains protected from inappropriate access, misuse and unintended breaches, wherever possible.

The central basis for the Agreement is to ensure that at a minimum, the practices can effectively operate as a single, seamless data-sharing body, enabling patients to benefit from timely data sharing to support provision of care and informed clinical decision making. This ranges from viewing records in remote and specialist clinics, enabling the advancement of care through integrating 3rd party patient data sources as well as supporting key directives such as Extended Hours.

The Agreement, by its definition, will also give the PCN Practices the ability to undertake detailed population health investigations and research at scale, which could be used to determine trends in treatment and outcomes, inform the location and provision of services and contribute to developing and promoting patient information that is regionally relevant and contextualized.

Information Governance Requirements

All sharing of Personal data is governed by the General Data Protection Regulation 2016, the UK Data Protection Act 2018, The NHS Caldicott Principles and NHS codes of practice for confidentiality and data sharing.

The following definitions are used in this Agreement:

- **Patient Confidential information** - health or care records relating to an identifiable individual (i.e. the patient).
- **DPA18** - the Data Protection Act 2018.
- **GDPR**- the General Data Protection Regulation 2016
- **Staff** - all persons working for or on behalf of any Party (whether permanent, agency, honorary, contractor or volunteer) who access or otherwise use the patient identifiable information as part of their role.
- **Healthcare purposes** - the use of patient identifiable information to support the provision of Healthcare to an individual patient, or the management of healthcare service and systems

Every GP Practice is identified as a “Data Controller” and each employee who has access to patient information is identified as having a responsibility for assuring data protection. In addition, each GP Practice has a nominated Caldicott Guardian who, as a senior member of staff, is responsible for protecting the confidentiality of patient and service-user information and enabling appropriate information sharing.

Under new GDPR legislation, Practices have identified a Data Protection Officer (DPO), who is an expert in data protection and provides independent advice on all matters relating to data protection.

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This Agreement will be delivered locally by Practice Managers and Caldicott Guardians (where they are separate individuals) DPO managing oversight of all matters, processes, procedures and issues relating to it.

The Legal Basis

The Legal Basis ensures that all data sharing across the Dorset PCN Practices geographical footprint is handled lawfully, fairly and in a transparent manner. The Legal Basis, using guidance provided by the ICO*, incorporates the following:

- **Consent**: that patients have provided consent for their personal information to be accessed for clinical purposes that support their care or contribute to research activities which benefit general practice
- **Contract**: which supports the ability of Health Care Professionals to provide ongoing care and support outside of clinical appointments as required
- **Legal obligation**: as guardians for patient information on behalf of the Secretary of State, patient information is shared to support safe and effective clinical care as required by clinical care pathways and processes
- **Vital interests**: where the patient information may be required in an Out of Hours Clinic to provide urgent care to a patient
- **Public tasks**: where the information is shared for the purpose of conducting necessary day-to-day general practice activities, such as remote booking of appointments

Appropriate patient details attending the PCN practices and additional information can be shared if certain criteria is met and this will be considered on a case by case basis, as appropriate. This agreement covers the exchange of personal data as defined under Article 4 of the General Data Protection Regulation (GDPR 2016). However, it is anticipated the same conditions will be followed before sharing de-personalised data.

This agreement has been developed bearing in mind the Data Protection Act 2018, GDPR 2016 and applied data protection legislation, the Human Rights Act 1998 and the Freedom of Information Act 2000.

Purpose of sharing

- Patient identifiable information is shared for the direct care of individual patients to whom each Party has a legitimate relationship (i.e. the sharing is healthcare purposes).
- Processing for non-healthcare purposes is under the requirements to perform public task in the public interest.

This Information Sharing Agreement is entered for the purpose of the parties sharing information as required or permitted under the data protection legislation and any other relevant legislation which shall include (but not limited to):

Data Protection Act 2018 (DPA)
General Data Protection Regulation 2016
Freedom of Information Act 2000
Human Rights Act 1998
Mental Health Act 1983
Health and Social Care Act 2012
Health and Social Care (Safety and Quality) Act 2015
Mental Capacity Act 2005
HSCIC Guide to Confidentiality
Information Governance/Caldicott 2 Review: To Share or Not to Share
Records Management NHS Code of Practice
NHS England Safe haven Procedure
NHS Constitution
Information Security Management: Code of Practice
Data Sharing Code of Practice
Privacy Notices Code of Practice
Any other relevant legislation, standards or guidance

The Parties acknowledge and agree that they will not be bound by the terms of this Information Sharing Agreement in the event either or both of them are prohibited to share information by any legislation.

Powers to share

Under the Health and Social Care (Safety and Quality) Act 2015, the Parties have a legal duty to share information with each other for the care of a patient. This means that unless an individual object, patient identifiable information must be shared between health or adult social care commissioners or providers in order to provide health services or social care that are in an individual's best interests.

For Healthcare Purposes

GDPR 2016 Article 9 *Processing of special categories of personal data* states that processing of personal data revealing racial or ethnic origin. religious beliefs, and the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, **data concerning health** or data concerning a natural person's sex life or sexual orientation shall be prohibited unless: -

(2h) processing is necessary for the purposes of preventive or occupational medicine, for the assessment of the working capacity of the employee, **medical diagnosis, the provision of health or social care or treatment or the management of health or social care systems and services** on the basis of Union or Member State law or pursuant to contract with a health professional and subject to the conditions and safeguards

Sharing patient identifiable information supports the health and care services for which PCN Practices is authorised as a provider of healthcare services to NHS patients.By signing this Agreement, each

Party asserts that it also has a lawful basis to obtain patient identifiable information in relation to the provision of health and care services.

Use case allowances and data

In order for the DPO, Practice Managers, Caldicott Guardians and other senior staff to have assurances of the valid and appropriate application of this Agreement within Dorset PCN as well as with external providers and care organisations, a set of pre-determined scenarios when data sharing is likely to occur have be considered. These are defined below and present the scope of the sharing agreement.

It should be noted that whilst this agreement need only be reviewed in its entirety on an annual basis, preferably in sync with annual practice Data Security and Protections Toolkit reviews.

For each use case presented below, it is important for each practice to identify and confirm which patient data will be made available for sharing purposes. Thus, the tables below provide the framework for the use cases and the datasets available for sharing; the Caldicott Guardian sign-off pages, provided within this document, will have been personalised by each site Guardian at the time of signing.

Information sharing scenarios	Use Case description	Access term
Remote electronic consultation	When a patient requests a remote electronic consultation, the clinician-on-call will access the patient record from within their local PAS	For duration of the appointment booking
Extended clinic appointment	A patient attending an early morning/late evening appointment when their own Practice is closed; the clinician can see their medical history and add a new journal entry resulting from the appointment.	For duration of the appointment booking
Inter-site appointment booking	When a clinic is being run at another Practice, receptionist can book patient appointment slots remotely	Duration of the Agreement
Clinical project monitoring	Database search queries to check the quality and consistency of data being collected in patient records for patients involved in a clinical study	Duration of the project
Multi-disciplinary meetings	Collective, remote review of patient records to enable expert clinical review and decision making	For duration of the appointment booking
Specialist, ad hoc clinic	Conducting regional, specialist clinics, e.g. immunisation, where records from multiple practices will be accessed and updated	For duration of the appointment booking
MIU access	Accessing and then updating patient records with observations and outcomes following an MIU episode	For duration of the appointment booking
Remote care sites	Accessing and then updating patient records where they are based in a hospice or care home	For duration of the appointment booking

Digital health products	Appending information collected through peripheral devices (digital cameras) to a patient's record	For duration of the appointment booking
3rd party referrals	Sharing relevant data between a practice and an approved service provider, e.g. Allied Healthcare Professional (AHP) podiatry service	Duration of the Agreement
Research studies	Conducting regional queries to generate report-level datasets for clinical research to enable intrinsic service provision improvements as well as support academic study	Case-by-case basis

Roles and responsibilities

Every member of staff should understand what "shared access of records" means, for their duties, for supporting colleagues as well as for discussing with patients and carers. Some staff members will have specific areas of responsibility and ownership. The proposed breakdown is as follows:

For each role, the Agreement identifies across a range of key aspects, whether that role has direct responsibility or accountability and whether they should be engaged in any decisions, or simply kept informed.

GDPR and National Data Opt Out (NDOO)

On May 25th 2018, GDPR was launched across the UK. In association with this NHS Digital will launch a service for the public to register their desire to limit the use of their data for medical care only.

The national Opt out program and access to it is referred in all PCN practices Privacy Notices.

Privacy Notice

The sharing agreement for the PCN is referred in all PCN practices Privacy Notice which is displayed on their individual websites.

Data Protection Impact Assessment

PCN Practices DPIA provides an assessment of the data handling responsibilities of all the PCN Practices Data Controllers. The Assessment has been conducted in line with the Data Protection Act Principles and as an associated document to be reviewed alongside this Agreement.

Incident reporting

Where any Party identifies a security event related to patient identifiable information, it shall be reported to PCN Practices and to any other relevant Parties as needed.

Incidents graded at severity level 2 shall be reported to the Information Commissioner, the Department of Health and NHS England by the Party responsible for the breach using the IG Incident Reporting Tool, available on the IG Toolkit website.

13. Keeping information secure

The following security measures will be in place:

- All paper documents will be held in locked cabinets when not in use
- Fax only to be sent to safe havens
- All staff to follow safe haven processes
- Email confidential information should be sent by NHS email to NHS email
- All information to be encrypted if NHS email is not available, confidential information must be attached to the email as password documents and passwords to follow by text or phone
- Electronic patient records will be accessed by smart card
- Each smartcard is unique to the user for audit purposes
- The information shared between the Parties must not be disclosed to any third party
- Each Party shall ensure that access to information provided by the other Party under this Information Sharing Agreement will only be granted to those staff who 'need to know' the information
- Any services provided by PCN Practices will have arrangements for recording and investigating serious untoward incidents and near misses, and the processes they have in place for learning from these incidents in collaboration with the GP practice. Each practice will use their local investigation methods and with this agreement share any findings with York North Locality Practices.
- The Parties shall comply with the requirements of the current Information Governance Toolkit in handling the shared information securely

Responsibility for data exchanging and ensuring data accuracy

- Caldicott Guardians within each practice who have signed the Information Sharing Agreement as having overall responsibility within their own organisation have the duty for ensuring the organisation has the necessary powers to share the information requested
- Any information shared must only be used for the purpose as requested
- The Parties in discharging their obligations under this Information Sharing Agreement shall comply with the eight Data Protection Principles

- The Parties shall ensure that the information shared is relevant and proportionate to the purpose for which it is shared and comply with the Data Protection Principles

- Information will not be passed to any third party other than allowed by law

- Retention for the intelligence purposes shall be allowed but only in line with the Data Protection Principles.

All Parties involved have agreed that the service users (data subjects) need to be informed of the following:

- What information is going to be shared
- In what format is the data going to be exchanged
- Who the information is going to be shared with
- For what purposes it will be used

Unless by doing so would risk harm to self or others or hinder any investigation or legal proceedings.

It is the responsibility of each Data controller (GP Practice) to inform their patients about the information listed above.

Each Party must appoint a single point of contact who must work together to ensure the processes of the agreement are fully adhered to.

Breach of Confidentiality

Any information breaches e.g. theft, loss, damage or inappropriate disclosure of information must be reported in accordance with PCN Practices Information Security Policy.

No data should be stored on the hard drive and if so, it should be securely removed and transferred as soon as possible.

Co-signees

In the following section the Agreement sign-off sheets for your practice is provided. Please fill in the use case table for your practice, signing it as appropriate and sending a scanned copy of the page to the Agreement Manager.

Practice Name	Barton House Medical Practice	Practice ID	J81074
Practice Manager	Sarah White	Caldicott Guardian	Dr T W Robinson

As Caldicott Guardian for the above referenced Practice, I authorise the sharing of our patient information for the purpose of medical care provided by ourselves as well as other Practices in the Primary Care Collaborative. In addition, information may be shared with approved 3rd party entities to whom care referrals are made for the provision of specialist care services.

As Caldicott Guardian for the above referenced Practice, and along with/as the Practice Manager, we will uphold the guidance set out in this Agreement, ensuring PAS configuration settings enables appropriate data sharing, that all staff and patients are adequately informed on the breadth of the Agreement's application and that information governance diligence is applied to monitor data sharing and mitigate the risk of data breaches and/or inappropriate access and misuse.

As Caldicott Guardian for the above referenced Practice, I agree to the principle of sharing patient information for the purposes of research either to directly support and benefit patients registered at this practice, but also to support the aims of the Dorset PCN and the CCG to provide the best quality and appropriate care. In addition, if access is requested for research to support other purposes, these will be individually assessed and reviewed by all Caldicott Guardians, PCN Practices the Data Protection Officer prior to any permission being provided.

As Caldicott Guardian for the above referenced practice, I permit the sharing of the following data types for the associated purposes. This table is to be completed by the Caldicott Guardian at the time of signing.

Information sharing use case	Demographic data	Personal Identification	Patient-sensitive data
Remote consultation arranged online	Y	Y	Y
Extended clinic appointment	Y	Y	Y
Inter-site appointment booking	Y	Y	Y
Clinical project monitoring	Y	Y	Y
Multi-disciplinary meetings	Y	Y	Y
Specialist, ad hoc clinic	Y	Y	Y
MIU access	Y	Y	Y
Remote care sites	Y	Y	Y
Digital health products	Y	Y	Y
3rd party referrals	Y	Y	Y
Research studies	Y	N	N

Signed Dr T W Robinson	Date 4th September 2019